

**CHAPTER xxv.**

An Act to confirm a Provisional Order under the Private A.D. 1912.
Legislation Procedure (Scotland) Act 1899 relating to.
Clyde Lighthouses. [25th June 1912.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Clyde Lighthouses Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

CLYDE LIGHTHOUSES.

*Provisional Order to provide for the improvement of the
River Clyde below Newark Castle Port Glasgow
to amend the Acts relating to the Clyde Lighthouses
and for other purposes.*

29 Geo. II.
c. 20.

WHEREAS an Act (herein-after called "the Act of 1755") was passed in the twenty-ninth year of the reign of His Majesty King George the Second intituled "An Act for erecting
" maintaining and supporting a lighthouse on the island of
" Little Cumray in the county of Bute at the mouth of the
" River Clyde in North Britain and for rendering the navigation
" in the frith and river of Clyde more safe and commodious":

34 & 35 Vict.
c. cxxxii.

And whereas by the Clyde Lighthouses Act 1871 (herein-after called "the Act of 1871") the Act of 1755 was amended and the Trustees of the Clyde Lighthouses (herein-after called "the Trustees") were incorporated and were given powers for executing and carrying into effect the purposes of the Act of 1755 and the Act of 1871 and were authorised to borrow certain moneys and to levy certain rates for the purposes of the said Acts:

43 & 44 Vict.
c. cxxxvii.

And whereas by the Clyde Lighthouses Act 1880 (herein-after called "the Act of 1880") the Trustees were authorised and required to make certain works in the river or frith of Clyde for the improvement alteration deepening and widening of the navigable channel of the said river or frith at or near Garvel Point and power was conferred on the Trustees to borrow an additional sum of money for the purpose of carrying out those works:

47 Vict.
c. x.
53 Vict.
c. vii.

And whereas by the Clyde Lighthouses Act 1884 further borrowing powers were conferred on the Trustees and by the Clyde Lighthouses Act 1890 (herein-after called "the Act of 1890") the time for the completion of the works authorised by the Act of 1880 was extended as therein provided:

And whereas the works authorised by the Act of 1880 were completed within the time limited by the Act of 1890 and the Trustees have paid off all moneys borrowed by them for the purposes of such works : A.D. 1912.

And whereas it is expedient to authorise the Trustees further to improve the navigation of the River Clyde by altering deepening and widening the channel thereof between the points and to the extent specified in this Order and to borrow money for the purposes of carrying out such improvement :

And whereas it is expedient that the Trustees should be authorised to make byelaws regulating the speed of vessels passing through the jurisdiction of the Trustees and with regard to the other matters specified in this Order :

And whereas it is expedient that further powers should be conferred on the Trustees with regard to the removal of wrecks :

And whereas it is expedient that the provisions of the Act of 1871 relating to the election of the Trustees should be amended as herein-after provided :

And whereas the Trustees have erected a lighthouse on Garroch Head on land which they hold from the Most Honourable John Crichton Stuart Marquis of Bute on lease for the term of the life of the said marquis who having a life interest only in the estate of which the said land forms part is unable to convey a greater interest to the Trustees :

And whereas it is expedient to authorise the Trustees of the late Marquess of Bute who are vested in the said land and the said marquis to convey the fee of the said land to the Trustees :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and the lands proposed to be taken for the purposes thereof and books of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order have been deposited with the principal sheriff clerks of the counties of Renfrew and Dunbarton and are in this Order referred to as the deposited plans sections and books of reference ;

A.D. 1912.

And whereas the objects aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title
and citation.

1. This Order may be cited for all purposes as the *Clyde Lighthouses Order 1912* and the Act of 1755 the Act of 1871 the Act of 1880 the Act of 1884 and the Act of 1890 and this Order may be cited together for all purposes as the *Clyde Lighthouses Acts 1755 to 1912*.

Commence-
ment of
Order.

2. This Order shall commence and take effect on the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order.”

Incorpora-
tion of Acts.

3. The Lands Clauses Acts (except sections 120 to 126 both inclusive of the Lands Clauses Consolidation (Scotland) Act 1845) are incorporated with and form part of this Order.

Interpreta-
tion.

4. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings:

And in this Order the expression—

“The Trustees” means the Trustees of the *Clyde Lighthouses*;

“The Act of 1755” means the Act 29 George II. chapter 20;

“The Act of 1871” means the *Clyde Lighthouses Act 1871*;

“The Act of 1880” means the *Clyde Lighthouses Act 1880*;

“The Act of 1884” means the *Clyde Lighthouses Act 1884*;

“The Act of 1890” means the *Clyde Lighthouses Act 1890*;

“The Greenock Harbour Trustees” means the trustees of the port and harbours of Greenock;

“The sheriff” means the sheriff of Renfrew and Bute or his substitute at Greenock.

5. Subject to the provisions of this Order the Trustees may and are hereby required within ten years from the commencement of this Order to make and thereafter to maintain in the lines and according to the levels shown on the deposited plans and sections the works herein-after described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes.

A.D. 1912.
Power to
make works.

The works herein-before referred to and authorised by this Order are—

An improvement alteration deepening and widening of the navigable channel of the river or firth of Clyde commencing at or near a point in the channel or bed of that river or firth five hundred and eight yards or thereabouts from the north-eastern corner of Newark Castle on the south shore of the said river or firth at Port Glasgow measured along an imaginary straight line drawn from the said north-eastern corner of that castle to the mouth of Cardross Burn on the north shore of the said river or firth (the point thus defined being on the centre line of the Clyde Navigation Trustees' deepened channel) and terminating at or near a point in the channel of the said river or firth three hundred and eighty-three yards or thereabouts from the north-western corner of the Albert Harbour at Greenock measured along an imaginary straight line drawn in a direction north-east by north from that corner of the said harbour :

And the Trustees may within the limits shown on the deposited plans dredge excavate cut away and remove the solum bed and banks of the said portion of the said river or firth to such an extent as may be necessary for the purposes of the works authorised by this Order.

6. For the protection of the Greenock Harbour Trustees the following provisions shall have effect and in the exercise by the Trustees of the powers conferred by this Order the same shall be exercised in accordance with such provisions and not otherwise (that is to say):—

For pro-
tection of
Greenock
Harbour
Trustees.

- (1) A plan (herein-after called "the signed plan") showing the lines and breadths of the deep water channel by this Order authorised to be improved altered deepened

A.D. 1912.

and widened being an enlargement of the deposited plans on a scale twenty-five inches to the mile having been prepared and five copies thereof having been signed by Sir John Alexander Dewar baronet the chairman of the commissioners to whom this Order was referred one copy thereof shall within one month after the commencement of this Order be deposited in the Scottish Office Whitehall London one in the office of the Trustees one in the office of the Greenock Harbour Trustees one in the office at Greenock of the principal sheriff clerk of the county of Renfrew and one in the office of the Board of Trade:

- (2) The said channel and the new access to the James Watt Dock herein-after mentioned which are tinted blue upon the signed plan shall be deepened to a uniform depth not exceeding 33.1 feet below Ordnance datum:

- (3) The said channel shall be widened so as to be of the breadths shown on the signed plan viz.:—

Three hundred and fifty feet from Inchgreen to Garvel Point increasing to four hundred and twenty feet at East India Harbour and diminishing again to three hundred and fifty feet at or about Albert Harbour and increasing towards the southward to about four hundred and fifty feet at the western termination thereof:

- (4) The dredging of the said channel between Inchgreen and its western termination shall be confined to the space shown between the lines on the signed plan representing the sides of the channel except where the material is such as to require dredging for the actual formation of the slopes of the channel. The access to the James Watt Dock to the extent of the area shown on the signed plan shall be dredged by and at the expense of the Trustees on the lines agreed to by the engineers of both trusts and to a depth equal to the depth of the new channel:

- (5) The existing depths of the water so far as available for navigation berthage and launching purposes southward of the deep water channel and within the limits of deviation from the entrance to the James Watt Dock

to the western termination of the channel as the said depths have been ascertained by a joint survey made by the engineers of both trusts (which are shown upon the signed plan) shall be maintained at those depths at the expense of the Trustees as after mentioned: A.D. 1912.

- (6) After the Trustees have completed the works by this Order authorised the provisions of section 6 (E) and (G) of the Act of 1880 shall apply and have effect with reference to the dredging necessary to obtain preserve and maintain the said depth of water in the said channel within the limits defined in the said section 6 (E) and also in the said access and the area to the southward of the said channel and access in which the existing depths are to be maintained:
- (7) Except as by this Order otherwise expressly provided section 42 of the Act of 1871 shall remain in full force and effect and (except as aforesaid) nothing in this Order contained shall affect the rights of the Greenock Harbour Trustees as existing at the commencement of this Order or authorise any interference with the property of such trustees. Provided that any provisions contained in any Act relating to the Greenock Harbour Trustees with reference to limiting the liability of the Trustees in the removal of silting shall receive full force and effect:
- (8) If any dispute shall arise between the Greenock Harbour Trustees and the Trustees respecting any of the matters and provisions of this section such dispute shall unless otherwise provided or agreed be settled by an arbiter to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the sheriff.

7.—(1). The Trustees may subject as herein-after provided deposit the material dredged or excavated in executing and maintaining the works by this Order authorised at any place in the river or firth of Clyde seaward of a line drawn from Whitefarland Point to Roseneath Point provided that no material shall be deposited at any place below high-water mark otherwise than in such position and under such restrictions as may be determined by the Board of Trade after making such inquiries as they may consider necessary. Deposit of dredgings.

A.D. 1912.

(2) No sewage or other offensive material shall be deposited by the Trustees in the river or firth of Clyde above Garroch Head or on the banks thereof but all such material shall be removed by the Trustees and deposited in the sea below Garroch Head in such position as may be approved by the Board of Trade.

Errors and omissions in plans and books of reference may be corrected by sheriff who shall certify same.

8. If any omission mis-statement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Trustees after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which the said lands are situate for the correction thereof and if it appears to the sheriff that the omission mis-statement or erroneous description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county in which the lands affected thereby are situate and with the town clerk of the burgh or with the clerk of the parish council (as the case may be) in which the lands affected thereby shall be situate and such certificate shall be kept by such sheriff clerk town clerk or clerk to the parish council respectively with the other documents to which the same relates and thereupon the deposited plans or books of reference (as the case requires) shall be deemed to be corrected according to such certificate and the Trustees may enter on take hold and use those lands and execute the works in accordance with such certificate.

Limits of lateral and vertical deviation.

9. In executing the works by this Order authorised the Trustees may deviate laterally from the lines thereof shown on the deposited plans but only to such extent within the limits of deviation shown thereon as may be necessary for the formation of the slopes of the channel by this Order authorised to be improved altered deepened or widened and may deviate vertically from the levels thereof shown on the deposited sections to any extent downwards not exceeding two feet but only in so far as may be necessary for the purpose of securing an actual depth of 33.1 feet below Ordnance datum Provided that such powers of deviation shall not be used for diverting the lines of the said channel.

10. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Order shall not be exercised after the expiration of three years from the commencement of this Order.

A.D. 1912.
Period for
compulsory
purchase of
lands.

11. If the works by this Order authorised are not completed within ten years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Trustees for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed :

Period for
completion
of works.

Provided that notwithstanding the expiration of that period the Trustees may from time to time do all such dredging and other work as the Trustees may consider necessary or expedient for preserving and maintaining the works authorised by this Order or such part thereof as may have been completed.

12. Nothing in this Order shall prejudice or affect the rights powers privileges and authorities of the trustees of Port Glasgow Harbour under and by virtue of the Port Glasgow Harbour Consolidation Act 1864 or the provisions of the agreement contained in the schedule to the Act of 1880.

Saving
rights of
trustees of
Port Glas-
gow Har-
bour.

13. Except as regards the works by this Order authorised nothing in this Order contained shall authorise any interference with the property of Sir Michael Hugh Shaw Stewart of Greenock and Blackhall baronet without his consent.

Saving
rights of
Sir Michael
Hugh Shaw
Stewart
Bart.

14. The Trustees may provide hire maintain and use such engines piling machinery diving bells dredgers ballast lighters barges tug boats and other vessels tackle machinery and other appliances and conveniences as they think proper for executing and maintaining the works authorised by this Order or for any other purpose of this Order.

Power to
provide
engines
dredgers &c.

15. Subject to the existing statutory rights of the Greenock Harbour Trustees the Trustees may from time to time make alter repeal and renew byelaws as they think fit for all or any of the following purposes provided that between the present eastern boundary of the burgh of Greenock and the western termination of the deep water channel by this Order authorised such byelaws shall only be applicable to and have effect within the said deep water channel (that is to say) :—

Power to
Trustees to
make bye-
laws.

For regulating the conduct of masters or persons having the control of vessels propelled by steam or other power

A.D. 1912.

with regard to the rate of speed at which they may proceed through the portion of the river or firth of Clyde within the jurisdiction of the Trustees or when passing any vessel engaged in charging repairing or otherwise dealing with the buoys or beacons of the Trustees or engaged in the carrying out of any works or operations of the Trustees;

For regulating the anchorage of vessels within the portion of the said river or firth within the jurisdiction of the Trustees;

For regulating the launching of vessels within the jurisdiction of the Trustees;

For requiring and regulating the lighting buoying or otherwise marking the position of any vessel sunk stranded or abandoned within the said portion of the said river or firth and for regulating the removal of any such vessel.

Byelaws to
be confirmed
by Board
of Trade.

16. The provisions of the Harbours Docks and Piers Clauses Act 1847, with respect to the byelaws to be made by the undertakers (except section 85 and so much of section 88 as requires a copy of such byelaws to be painted or placed on boards and put up in some conspicuous part of the office of the undertakers) are incorporated with this Order and shall apply to all byelaws made by the Trustees under the authority of this Order. Provided that such byelaws shall not have any force or effect unless and until the same are confirmed by the Board of Trade.

Corporation
of Greenock
to be entitled
to appear
before Board
of Trade.

17. On application by the Trustees for confirmation of any byelaws framed by them under the powers conferred on them by this Order the corporation of Greenock shall be entitled to appear and oppose the confirmation of such byelaws in so far as they may take away abridge or diminish any of the rights privileges jurisdiction or powers which now belong to or are enjoyed by the corporation or the magistrates of the burgh.

Jurisdiction
of bailie of
firth of
Clyde and
magistrates
of Greenock.

18. Notwithstanding anything contained in this Order or in the Acts incorporated therewith all offences against any byelaws made under the powers of this Order or such Acts may be tried in the court of the bailie of the river and firth of Clyde in the same way and manner and subject to the same procedure as police offences under the Glasgow Police Acts 1866 to 1909 and any offences against the said byelaws which may be

committed within the jurisdiction of the magistrates of Greenock may be tried by the said magistrates in manner directed by the Summary Jurisdiction (Scotland) Acts. A.D. 1912.

19. On application by the Trustees for confirmation of any byelaws framed by them under the powers conferred on them by this Order the Clyde Pilot Board shall be entitled to appear and oppose the confirmation of such byelaws in so far as they may conflict with any byelaws of the Clyde Pilot Board. For protection of Clyde Pilot Board.

20. From and after the commencement of this Order so much of section 14 of the Act of 1871 as requires the clerk of the Trustees to publish by advertisement lists of the persons qualified to be electors of and to be elected as the elective Trustees shall be and is hereby repealed and in lieu thereof the said clerk shall on or before the fifteenth day of October in each year publish by advertisement in manner provided by the Act of 1871 a notice that lists of the persons qualified as aforesaid have been made up and certified by him and that such lists are accessible to the public at all times within the office of the Trustees. Amendment of section 14 of Act of 1871.

21. Section 16 of the Act of 1871 is hereby repealed and in lieu thereof it is enacted as follows:— Repeal of section 16 of Act of 1871.

(a) The following rules shall be observed with respect to the election of the elective Trustees in the month of November one thousand nine hundred and twelve and in succeeding years:— Rules to be observed in election of elective Trustees.

(1) The election shall take place in the month of November in each year;

(2) At each election two Trustees shall be elected by and from among the electors for the city of Glasgow one Trustee shall be elected by and from among the electors for the town of Greenock and one Trustee shall be elected by and from among the electors for the town of Port Glasgow;

(3) The chairman of the Trustees for the year current at the time or some person or persons appointed by him shall be the returning officer. In the event of the chairman being from any cause unable to act or to appoint some person or persons to act as returning officer then the deputy chairman for the year current at the time or some

A.D. 1912.

person or persons appointed by him shall be the returning officer ;

(4) On every occasion of the election of Trustees the returning officer shall convene a meeting of the electors for the city of Glasgow the town of Greenock and the town of Port Glasgow respectively in those respective places for the purpose of such election and shall give notice of such meeting and of the time and place at which it is to be held by advertisement at least six days before such meeting ;

(5) The returning officer shall preside at and regulate the proceedings at such meeting and his decision upon any questions which may arise thereat shall be final and conclusive ;

(6) At any such meeting any qualified person may be nominated as a Trustee by any elector as proposer and seconded by any other elector and the proposer and seconder shall at the time of such nomination deliver to the returning officer a nomination paper subscribed by them in which shall be set forth the christian name and surname with the place of abode and designation of the candidate nominated and stating that he is qualified and willing to act as a Trustee and also the respective places of abode and designations of his proposer and seconder ;

(7) If more candidates than the number to be elected are proposed and shall ultimately stand nominated as herein-after provided a poll shall be taken in manner herein-after provided but if no more candidates than the number to be elected are proposed or shall ultimately stand nominated as aforesaid a declaration by the returning officer that such candidates are elected Trustees shall be evidence of the fact and thereupon no poll shall be taken ;

(8) Where more candidates than the number to be elected are nominated any of such candidates may withdraw from his candidature by notice signed

by him and delivered to the clerk of the Trustees not later than twelve o'clock noon of the day next after that on which the nomination was made. Provided that such notices shall take effect in the order in which they are delivered to the said clerk and that no such notice shall take effect so as to reduce the number of candidates ultimately standing nominated below the number to be elected : A.D. 1912.

(b) The following rules shall be observed with respect to taking the poll for the election of Trustees at the elections which are to take place in the month of November one thousand nine hundred and twelve and in succeeding years :— Rules as to taking poll.

(1) The returning officer shall direct the poll to be taken at such place within the city of Glasgow or the town of Greenock or the town of Port Glasgow according as the election relates to such places respectively and on such day not exceeding six clear days from the day of nomination as he may determine ;

(2) The poll subject to the provisions of this Order shall be taken in like manner as a poll at a contested municipal election is directed by the Ballot Act 1872 to be taken and subject as aforesaid the provisions of that Act shall apply to the election of Trustees with the substitution of the term "election of Trustees" for the term "municipal election" and of the word "Trustees" for the words "town councillors" or "councillors" ;

(3) The poll shall be opened at ten o'clock in the forenoon of the appointed day and shall close at four o'clock in the afternoon of the same day ;

(4) At the close of the poll the returning officer shall sum up the votes and as soon as possible publish the names of the persons elected by advertisement in some one or more of the newspapers published in Glasgow in the case of an election for the city of Glasgow and in some one or more of the newspapers published in Greenock in the case of an election for the town of Greenock or the town of Port Glasgow ;

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(5) In the event of two or more candidates having the same number of votes both or all of whom cannot be elected Trustees the returning officer shall determine the candidate or candidates to be elected and his decision shall be final;

(6) The expenses incident to the election (but not including the expenses of any candidate) shall be paid by the Trustees out of the revenues of the trust.

Amendment
of section 20
of Act of
1880.

22.—(1) Section 20 (Power to remove wrecks &c.) of the Act of 1880 shall be read and have effect as if the provisions of that section relative to the expense of removing any wreck sunken vessel or obstruction applied or extended to and included any former owner of the wreck sunken vessel or obstruction whenever it is shown that such former owner relinquished abandoned or transferred his interest in any such wreck sunken vessel or obstruction after the date at which the wreck occurred or the vessel was sunk or the obstruction was first created or occurred and all such provisions may be enforced by the Trustees accordingly.

(2) The powers of the said section as amended by this Order may be exercised by the Trustees notwithstanding any steps taken by any owner of the wreck sunken vessel or obstruction for the removing raising or destruction thereof.

Agreement
with Marquis
of Bute.

23. The Trustees may by agreement purchase and the Most Honourable John Crichton Stuart Marquis of Bute or the trustees of the late Marquess of Bute may sell and convey to the Trustees the site of the lighthouse on Garroch Head belonging to the Trustees leased to the Trustees by the commissioner for the said marquis by lease dated the thirteenth and fifteenth days of July one thousand nine hundred and ten and the provisions of the Lands Clauses Consolidation (Scotland) Act 1845 with respect to the purchase of land by agreement and with respect to the purchase money or compensation coming to persons having limited interests shall apply to such purchase and sale and in the application of those provisions for the purposes of this section the Trustees shall be deemed to be the promoters of the undertaking and this Order shall be deemed to be the special Act.

24. The Trustees may from time to time borrow at interest any sum or sums of money not exceeding in the whole one hundred thousand pounds on the security of the rates leviable by them under the authority of the Act of 1871 as amended by the Act of 1880 and of the Act of 1880 and may grant to the persons advancing or lending the money so to be borrowed mortgages of the said rates as a security for the payment of the money so to be borrowed with the interest thereof.

A.D. 1912.

Power to
borrow
money.

25. Subject to the provisions of this Order the provisions contained in the under-mentioned sections of the Act of 1871 and of the Act of 1880 shall apply to the borrowing of money by the Trustees under the authority of this Order as if those provisions had mutatis mutandis been expressly re-enacted in this Order with reference thereto and in construing those provisions for the purposes of this Order the expression "this Act" shall mean this Order (that is to say):—

Certain
provisions of
former Acts
incorporated.

Of the Act of 1871—

Section 57 Mortgages to be personal estate;

Section 58 Money to be borrowed in substitution of sums paid off;

Section 59 Form of mortgages;

Section 60 Register of mortgages to be kept and to be open to inspection;

Section 61 Payment of interest on mortgages;

Section 62 Transfer of mortgages;

Section 63 Transfers to be registered;

Section 64 Transmission of mortgages otherwise than by transfer;

Section 65 Transmission by marriage and by testamentary instruments;

Section 66 Trustees not bound to see to the execution of trusts;

Section 67 Interest to be paid half yearly;

Section 68 Repayment of borrowed money;

Section 69 As to payment of borrowed money when no time or place has been agreed upon;

Section 70 Interest to cease at expiration of notice to pay off mortgage;

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Section 71 Appointment of a judicial factor ;

Section 72 Powers and duties of judicial factor ;

Section 73 Discharge of mortgages ;

Section 77 Investment of sinking funds :

Provided that section 58 of the Act of 1871 shall for the purposes of this Order be read as if the words "one hundred thousand pounds" had been inserted therein instead of the words "fifteen thousand pounds" :

Of the Act of 1880—

Section 15 Partial transfers of mortgages prohibited.

Sinking
fund.

26.—(1) The Trustees shall within three months after the thirtieth day of September one thousand nine hundred and fourteen and within three months after the thirtieth day of September in each succeeding year set apart out of the surplus revenue of the Trustees for the previous financial year ending on the thirtieth day of September after defraying the ordinary expenditure of the Trustees and paying interest on money borrowed a sum equal to two per centum of the whole amount borrowed under the authority of this Order as a sinking fund to be applied in paying off the money so borrowed or towards the purposes for which the Trustees are by this Order authorised to borrow money and for no other purpose whatever Provided always that the sum which the Trustees are authorised to borrow shall be reduced by the amount of any sum or sums which may be taken out of the sinking fund for any other purpose than to pay off borrowed money Provided also that if the surplus annual revenue of any financial year after the thirtieth day of September one thousand nine hundred and fourteen shall not amount to two per centum of the whole amount borrowed as aforesaid the Trustees shall not be bound to appropriate or set apart in respect of such year any greater sum than the amount of the surplus revenue for such financial year but such deficiency shall be made good out of the surplus revenue of any subsequent year.

(2) Section 4 (Sinking fund) of the Act of 1884 is hereby repealed.

Annual
return to
Board of
Trade with
respect to
sinking fund.

27. The treasurer of the Trustees shall within twenty-one days after the thirty-first day of December in each year during which any sum is by this Order required to be set apart for a sinking fund transmit to the Board of Trade a return in such

form as may be prescribed by that Board and verified by statutory declaration if so required by them showing the amount which has been set apart or invested for the purposes of such sinking fund in respect of the year ending on the thirtieth day of September preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys set apart or invested for the sinking fund and the interest thereof has been applied during the same period and the total amount remaining set apart or invested at the end of that period And in the event of any default in making such return the treasurer shall be liable to a penalty not exceeding twenty pounds which shall be payable to the Board of Trade and shall be recoverable by that Board as a debt to the Crown is recoverable If it appear to the Board of Trade by such return or otherwise that the Trustees have failed to set apart the sum required by this Order for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest thereof to any purposes other than those authorised by this Order the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

A.D. 1912.

28. All moneys borrowed under the authority of this Order shall be applied in executing the works authorised by this Order and generally in carrying into effect the objects and purposes of the Act of 1755 the Act of 1871 the Act of 1880 and of this Order to which capital is properly applicable.

Application
of borrowed
moneys.

29. Subject to the provisions of this Order any of the works authorised by this Order to be executed on over or under tidal lands below high-water mark of ordinary spring tides shall be executed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade Any alteration or extension of any such works shall be subject to the like approval.

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

A.D. 1912.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Trustees and the amount of such cost shall be a debt due from the Trustees to the Crown and shall be recoverable as a Crown debt or summarily.

Crown
rights.

30. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Exemptions
and savings
for Govern-
ment depart-
ments.

31. Sections 28 and 99 of the Harbours Docks and Piers Clauses Act 1847 are hereby incorporated with this Order and those sections as so incorporated shall apply to and for the benefit of any Government department in the same manner as they apply to and for the benefit of the Government departments specially named in those sections The following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “post office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “post office bag of letters” means a mail bag as defined by the same Act:

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Survey of
works by
Board of
Trade.

32. If at any time the Board of Trade deems it expedient for the purposes of this Order to order a survey and examination of a work constructed by the Trustees on in over through or

across tidal land or tidal water or of the intended site of any such work the Trustees shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Trustees to the Crown and be recoverable as a Crown debt or summarily. A.D. 1912.

33. Nothing in this Order contained shall exempt the Trustees or their undertaking from the provisions of the Merchant Shipping Act 1894 or of any general Acts relating to dues on shipping or on goods carried in vessels now in force or which may be passed during the present or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the rates authorised to be taken by the Trustees. Reserving Merchant Shipping and general Acts.

34. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees out of the rates authorised to be levied or the moneys authorised to be borrowed by them and if paid out of borrowed money shall be repaid out of revenue within five years after the commencement of this Order. Costs of Order.

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